IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT– II)

Item No. 301
CP(CAA)87/ND/2024

IN THE MATTER OF:
Perfect Relations Pvt. Ltd. ... Applicant/Petitioner

Under Section: 230-232

Order delivered on 19.11.2024

CORAM:
SH. ASHOK KUMAR BHARDWAJ **SH. SUBRATA KUMAR DASH**
HON'BLE MEMBER (J) **HON'BLE MEMBER (T)**

PRESENT:
For the Applicant : Adv. Naresh Kumar
For the Respondent :

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

The present petition has been preferred for sanction of Scheme of Amalgamation of Perfect Relations Private Limited (Petitioner No. 1/Transferor Company No. 1) and Accord Public Relations Private Limited (Petitioner No. 2/Transferor Company No. 2) and WAT Media Private Limited (Non-Petitioner /Transferor Company No. 3) with Dentsu One Private Limited (Non-Petitioner/Transferee Company) under Section 230-232 of Companies Act, 2013.

The petition is second motion under Section 230-232 of the Companies Act, 2013. The Scheme of Amalgamation is espoused under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 for merger/amalgamation of the aforementioned companies to achieve the objects mentioned in the scheme of amalgamation.

Heard. Issue notice to the (I) Central Government through the Regional Director (Northern Region), Ministry of Corporate Affairs (II) Registrar of Companies, NCT Delhi and Haryana; (III) Official Liquidator, Ministry of Corporate Affairs, New Delhi; and (IV) Income Tax Department., and other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement. The representations, if any, to be made by the

notice shall be made within a period of thirty days from the date of receipt of the notice, failing which, it shall be presumed that they have no representations to make on the proposal.

Ld. Counsel for the Petitioner undertakes to serve notice upon the authorities/offices referred to hereinabove by all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within one week. The petitioner shall also sent all the documents referred to in Section 230(3) of the Companies Act, 2013 viz., a statement disclosing the details of the compromise, arrangement, a copy of the valuation report, if any, and their effect on creditors, key managerial personnel, promoters and non-promoter members, and the debenture-holders and the effect of the compromise or arrangement on any material interests of the directors of the company or the debenture trustees, if any, to the authorities referred to in Section 230(5) of the Companies Act, 2013 . The documents along with the copy of the notice to be served in terms of the present order upon the authorities referred to in Section 230(5) of the Companies Act shall also be placed on the website of the company, if any, and shall also be published in two nationalised newspapers namely, "Business Standard" (English, Delhi/NCR Edition); and Business Standard (Hindi, Delhi/NCR Edition) circulation in the locality/state where the registered offices of the petitioners are located.

List on **16.01.2025.**

Sd/-
(SUBRATA KUMAR DASH)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)